

CONTINGENCY FEE AGREEMENT

THIS IS AN AGREEMENT BETWEEN Washington Client, (hereinafter “Client”) and {{FIRM_NAME}} (hereinafter “{{FIRM_NAME}}” or “Attorney”). Unless a different Agreement is subsequently made in writing, this Agreement alone shall govern Attorney’s and Client’s respective rights and responsibilities. It is specifically understood that Attorney’s representation is limited to specific person named as Client and that Attorneys are not representing or expected to represent any other person or entity not named herein as Client. Client retains {{FIRM_NAME}} to prosecute a claim on my behalf against any party who may be liable for damages as a result of a motor vehicle collision/premise liability action occurring on and agree as follows:

1.

ATTORNEY’S FEE SHALL BE THIRTY-THREE AND ONE-THIRD PERCENT (33-1/3%) OF ALL GROSS AMOUNTS RECOVERED FROM ANY SOURCE, SPECIFICALLY INCLUDING, BUT NOT LIMITED TO, ANY RECOVERY FROM THIRD PARTIES, UNINSURED MOTORIST, AND/OR UNDERINSURED MOTORIST COVERAGE, BAD FAITH, AND ANY RECOVERY FROM ANY OTHER PERSON OR ENTITY AND FORTY PERCENT (40%) OF ANY SUCH AMOUNTS RECOVERED AFTER FILING OF A FORMAL LAWSUIT OR THE INITIATION OR COMMENCEMENT OF BINDING ARBITRATION. NO ATTORNEY FEE SHALL BE CHARGED BY THE ATTORNEY IF THERE IS NO RECOVERY ON THE CASE.

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2.

COSTS ADVANCED BY ATTORNEY ARE EXPENSES TO PROSECUTE THE CLAIM AND ARE TO BE DEDUCTED FROM THE RECOVERY AFTER ATTORNEYS’ FEE. Costs will include a minimum charge of Three Hundred Fifty Dollars (\$350.00) as reimbursement for general office expenses such as photocopies (in excess of 100 pages), long distance, facsimile, postage, courier/messenger fees, investigation expenses, medical/nurse consultant fees, photography and video fees, evidence storage fees, filing fees, service of process fees, bond fees, witness fees, expert fees, records fees, legal research, court reporter fees, courtroom presentation and technician fees, travel expenses, arbitration fees, mediation fees and jury fees. Client understands that depending upon the value and/or complexity of the case, Costs can, and often do, total hundreds of thousands of dollars, and on occasion can exceed \$1,000,000.00. Client acknowledges and agrees that Attorney may borrow funds from a lender to finance or to pay costs and expenses such as those referred to above, and that in addition to costs and expenses, Client agrees that interest charges and related expenses Attorney incurs in connection with such borrowing will also be deducted after the calculation of Attorney’s fee.

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3.

WITHDRAWAL AND DISCHARGE: Withdrawal by the Attorney may be made at any time with cause, upon written notice to client’s last known address. Reasons for termination by the Attorney include: 1. The Client persists in a course of action involving the Attorney’s services that the lawyer reasonably believes is criminal or fraudulent; 2. The Client has used the Attorney’s services to perpetrate a crime or fraud; 3. The client insists upon pursuing an objective that the Attorney considers repugnant or imprudent; 4. The client fails to substantially to fulfill an obligation to the Attorney regarding the Attorney’s services and has been given reasonable warning that the Attorney will withdraw unless the obligation is fulfilled (including but not limited to the Client not keeping his or her appointments, the Client not providing documents to the Attorney, and/or the Client not answering questions); 5. The representation will result in an unreasonable financial burden on the Attorney or has been rendered unreasonably difficult by the client; 6. The Client mistreats the staff at {{FIRM_NAME}}. Clients also have the right to discharge Attorney at any time upon written notice to Attorney. Attorney shall have 72 hours in which to provide Client a copy of Client’s complete file. In addition to any medical expenses incurred by Client, Client will also be responsible for any costs associated with the copying and delivery of the file post termination.

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4.

ATTORNEY’S LIEN: Client hereby gives and assigns to attorney an irrevocable lien on any sum that client becomes entitled to receive, to secure Attorney’s compensation and any costs advanced by Attorney, as well as any costs, interest and/or fees associated with funding of costs by a financial institution pursuant to applicable provisions of this agreement. Client further understands that in the event of termination of the Attorney-Client relationship, the reasonable value of Attorney’s services shall be the greater of four hundred dollars (\$400.00) per hour, the applicable percentage (pursuant to the provisions of this agreement) of any settlement offer received on Client’s case, or the applicable percentage (pursuant to the provisions of this agreement) of any ultimate recovery on the claim. Should the lien be calculated on an hourly rate, it is further agreed that the reasonable value of paralegal, or legal assistant services shall be two hundred dollars (\$200.00) per hour. Should client hire new counsel, Attorney is entitled, at a minimum, to a pro rata share of the attorneys’ fees recovered based on relative work performed, reputation of attorneys, length of representation, and any other relevant factors. If no recovery is obtained, Attorney will receive no fee for professional services.

Initials _____
5.

OTHER LEGAL COUNSEL may be associated or employed at Attorney’s discretion and expense to prosecute or appear on behalf of Client’s claim. Any legal counsel associated at Attorney’s discretion shall be paid out of Attorney’s fees and client will not pay any additional Attorney’s Fees.

Initials _____
6.

NO GUARANTEE AS TO RESULT: Client acknowledges that Attorney has made no warranties or guarantees as to the success, value, timing and outcome of this claim. As noted in NRPC 1.5, IN THE EVENT OF A LOSS, THE CLIENT MAY BE LIABLE FOR THE OPPOSING PARTY’S ATTORNEY FEES, AND WILL BE LIABLE FOR THE OPPOSING PARTY’S COSTS AS REQUIRED BY LAW; AND THAT A SUIT BROUGHT SOLELY TO HARASS OR TO COERCE A SETTLEMENT MAY RESULT IN LIABILITY FOR MALICIOUS PROSECUTION OR ABUSE OF PROCESS.

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7.

SERVICES NOT COVERED BY THIS AGREEMENT: If additional legal services are necessary in connection with Client’s claim(s), and Client requests attorney to perform such services, additional fee arrangements must be made by Attorney and Client. For example, such additional services may be required in the event of an **appeal, retrial, trial do novo (i.e., new trial), or in judgment enforcement proceeding**. Absent further agreement, Attorney will be under no obligation to pursue any of these actions.

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8.

LOANS: Pursuant to the Nevada State Bar, Attorney may not **LOAN OR ADVANCE** monies to client. Outside loan companies do exist, however these loan companies charge interest rates as high as 40% or more per year, as such, Attorney advises against obtaining loans on your case.

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9.

APPROVAL NECESSARY FOR SETTLEMENT: No settlement of any nature shall be made without Client’s approval, and Client agrees to make no settlement or offer of settlement without first settling with attorney. Client does, however, hereby agree to accept an offer of the entirety of insurance policy limits available for Client’s claim(s) and Attorney, therefore, has the right to accept an offer of policy limits from any entity or party.

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10.

DISTRIBUTION OF FUNDS shall be made after monies are received, negotiable instruments (e.g., checks) are deposited and cleared, and lien holders are satisfied. Client shall be responsible for any debts or liens owed and related to the claim that Attorney is unaware of. Client shall be provided with a written, itemized disbursement of all monies received and paid on behalf of client’s claim. Any funds received shall be disbursed first to pay costs (with associated interest and fees) incurred in prosecuting Client’s case; second to Attorney to pay legal fees calculated based upon gross recovery; third to medical facilities, health insurance, Medicare, Medicaid, and any lienholders, and the remainder shall be disbursed to Client.

Initials _____
11.

ANY AND ALL MEDICAL EXPENSES INCURRED, CLAIMS, OR LIENS by the Client are **payable by the Client and the sole obligation of the Client**. Pursuant to NRPC 1.15(d), Nevada Ethics Opinion No. 31, Achrem v. Expressway Plaza Limited, 112 Nev. 737, 917 P.2d 447 (1996), **attorneys must withhold funds from a client’s recovery in which a third-party creditor has a claim or lien against the funds**. Client remains ultimately responsible to ensure that all medical bills are paid as attorneys may be unaware of the existence of medical bills or unpaid copays.

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12.

BANKRUPTCY PROVISIONS: Client represents to Attorney that Client is not presently, nor do they contemplate filing for Bankruptcy protection; that they will inform Attorney should such a course of action be contemplated in the future. Client acknowledges that any fees garnered as a result of this claim are subject to such proceedings wherein they are to be scheduled as an asset by Client and that Attorney must turn over Client’s portion of the Client’s recovery to the Bankruptcy Trustee. Client further acknowledges that any expense which the attorney may incur to protect attorney’s fees from said result shall be subtracted from the recovery that normally would flow to Client as his/her share of recovery.

Initials _____
13.

POWER OF ATTORNEY: Attorney is hereby granted a limited power of attorney so that they may have full authority to prepare, sign and file all legal instruments, pleadings, drafts, releases, dismissals, checks, authorizations and papers as shall be reasonably necessary to handle and to conclude this representation including settlement and/or reducing to possession all monies or other things of value due client under his/her claim(s), including, but not limited to, signing client’s name on settlement checks and depositing into Attorney’s trust account. Client expressly authorizes Attorney to negotiate medical payments, insurance checks or drafts and/or checks or drafts from insurance providers that arrive prior to settlement of the case. This negotiation shall be for the sole and exclusive purpose of depositing checks into Attorney’s trust account so that the checks or drafts will not unduly age prior to depositing and so Client’s personal presence will not be required for such a technical purpose. Client specifically authorizes Attorney to affix Client’s signature to any checks or drafts for such limited purposes. Attorneys are also authorized and empowered to act as Client’s negotiator in any and all settlement negotiations concerning the subject of this agreement.

Initials _____
14.

CLIENT’S RECEIPT OF AGREEMENT AND ACKNOWLEDGMENT OF TERMS: Client acknowledges that he/she have read and fully understand all of the terms and conditions of this Agreement and upon execution thereof. They are further informed that if they wish to do so, they may seek outside review of this contract by another lawyer.

Initials _____

DATED _____
AGREED AND ACCEPTED

For {{FIRM_NAME}}